

marks also present.” with the observation in the relevant column of MLR relating to possibility of fabrication, if any as ‘Yes’. The produced record indicates that the complainant party of the cross-version/injured, while exercising his legal right, moved for constitution of a District Standing Medical Board and succeeded therein; however, despite re-examination, the said District Standing Medical Board affirmed the observations of the first doctor with the remarks recorded in the relevant column as *“In the light of re-examination conducted by the District Standing Medical Board, perusal of MLR issued by 1st examiner, all the members of District Standing Medical Board are unanimously of the opinion that there is nothing to disagree with IMLO regarding injury No.01 and 02”*. The aggrieved then proceeded further and a Provincial Medical Board was constituted, which returned a favourable opinion for him with the words set out at serial No.13 as *“Possibility of fabrication with reasoning Yes, for injury No.1, as dimension & configuration of injury does not correlate with weapon of infliction, stated in history (firearm). No for injury No.2 as manner of infliction stated in history correlates with injury.”* The observation relating to injury No.1, showing possibility of fabrication as ‘Yes’, *prima facie* reflects adulteration on the part of the injured. No doubt, the Provincial Board differed from the opinion of the basic medical examiner as well as the District Standing Medical Board to the extent of injury No.2, recording the possibility of fabrication as ‘No’.

5. The injured was first medically examined on 01.07.2023 shortly after the occurrence, whereas the process of re-examination before the Provincial Standing Medical Board was conducted on 14.05.2024, after a lapse of almost ten months. Though re-examination after such period is permissible, yet the reason recorded by the first medical examiner regarding the presence of injection marks would have lost its significance with the passage of time due to healing. In addition, there was no bruise or impact of any weapon present. Reason and logic constitute the real essence of an opinion. Renowned medical jurist ‘Modi’, ‘Parmar & Parekh’s as well as local medical expert ‘Dr. S. Siddiq Husain’, in their works on medical jurisprudence and toxicology, have described certain signs of injuries as friendly-handed or self-suffered and have provided indicators to unearth the same. When the opponent was armed with the weapon, in a fully charged state, and allegedly gave a blow with full force, yet the damage was confined to a finger in the shape of fracture, without the slightest harm to the remaining part of the relevant hand, the same constitutes a circumstance creating doubt. Considering the tendency of false implication, the extraordinary relief, in the shape of pre-arrest bail, has been granted and its scope has been extended from time to time by this Court as well as Hon’ble Supreme Court of Pakistan. Guiding principle laid down in the case of “Khalid Javed Gillan Vs. The State” (PLD 1978 SC 256), “*while deciding bail petitions only a tentative assessment of the material and facts available on record is to be*

made and deeper appreciation of the same shall be avoided and that any fact which may not be sufficient to cast doubt of absolute nature on the prosecution case, but equally sufficient to be considered for grant of bail, cannot be lightly ignored". It has been held by the Hon'ble Supreme Court of Pakistan in the cases reported as "Muhammad Umar Waqas Barkat Ali Versus The State and Another" (2023 SCMR 330) and "Abdul Rehman Alias Muhammad Zeeshan Versus The State and Others" (2023 SCMR 884) that while deciding pre-arrest bail application merits of the case can also be touched upon and question of further inquiry can be stretched at this stage as well. In the circumstances, apparently petitioner has made out a case for grant of pre-arrest bail. Furthermore, benefit of doubt is the right of the petitioner/accused even at the stage of pre-arrest bail, as enunciated in the case law reported as "Fahad Hussain and another versus State through Prosecutor General Sindh" (2023 SCMR 364).

6. In a quite identical fact, when the injury was on the little finger of left hand of the injured, statedly caused fracture, attracted punishable offence under Section 337-F(vi) P.P.C., the accused remained failed to get the relief of pre-arrest bail up till this Court, however, relief of pre-arrest bail was granted to him by the Apex Court. Reliance is place upon precedent reported as "Muhammad Akhtar Vs. The State and others" (2025 SCMR 1631), the relevant ratio is as under:

"In such view of the matter, if petitioner is denied the extra ordinary concession of pre-arrest bail, he would nonetheless be entitled to post-arrest bail, considering the nature and extent of the

punishment prescribed for the offences with which he stands charged.

In the case of “Khalil Ahmed Soomro Vs. The State” (PLD 2017 SC 730), the Supreme Court has observed that where an accused has a strong case for post-arrest bail, he ought not to be incarcerated merely to satisfy the complainant’s desire to have him arrested for a few days, by denying pre-arrest bail”.

7. For the reasons mentioned above, instant petition is **allowed** and subject to furnishing fresh bail bonds by the petitioner in the sum of Rs.50,000/- (rupees fifty thousand) with one surety in the like amount to the satisfaction of learned trial court, ad-interim pre-arrest bail already granted is hereby **confirmed.** The above observations are tentative in nature and would not be taken as conclusive.

(Tariq Mahmood Bajwa)
Judge

MuzamilMohsin*

Approved for reporting.

Judge